

1 ENGROSSED SENATE
2 BILL NO. 1327

By: Jech of the Senate

3 and

4 Newton of the House

5
6 An Act relating to the Oklahoma Tourism and
7 Recreation Department; amending 74 O.S. 2021,
8 Sections 2203, 2204, and 2206, which relate to the
9 Oklahoma Tourism and Recreation Commission;
10 transferring certain duties to the Commission;
11 requiring appointed members to possess experience in
12 certain fields; modifying powers and duties of the
13 Executive Director; requiring certain oath;
14 establishing organizational and meeting requirements
15 for the Commission; authorizing the Commission to
16 appoint Executive Director; providing for
17 determination of salary; and providing an effective
18 date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 74 O.S. 2021, Section 2203, is
21 amended to read as follows:

22 Section 2203. A. The Oklahoma Tourism and Recreation
23 Commission shall ~~be an advisory body to the Executive Director of~~
24 ~~the Oklahoma Tourism and Recreation Department and shall~~ consist of
eight (8) members who shall serve a term of six (6) years.
~~Effective January 14, 2019, all duties and powers of the Commission~~
~~shall be transferred to the Executive Director. Any provision in~~
~~statute that provides to the Commission authority that is not~~

1 ~~advisory in nature shall be deemed to grant the duty or power to the~~
2 ~~Executive Director.~~ No more than one Commission member shall be
3 from any one county. The Lieutenant Governor shall serve as an ex
4 officio voting member of the Commission.

5 B. Each appointed member of the Commission shall demonstrate
6 experience in one or more of the following fields directly related
7 to economic growth and tourism development:

8 1. Hospitality management;

9 2. Venue management;

10 3. Tourism promotion;

11 4. Real estate development;

12 5. Outdoor recreation;

13 6. Marketing and branding; and

14 7. Financial operations.

15 C. One member shall be appointed from each congressional
16 district, who shall be a resident and a qualified elector in the
17 district from which appointed, and the remaining members shall be
18 appointed from the state at large. If congressional districts are
19 redrawn each member appointed shall complete the current term of
20 office at which time a new appointment shall be made in compliance
21 with the redrawn congressional district.

22 ~~C.~~ D. Commission members shall be appointed by the Governor,
23 with the advice and consent of the Senate, and shall serve at the
24 pleasure of the Governor. Whenever a vacancy on the Commission

1 occurs by death, resignation, or otherwise, the Governor shall fill
2 the same by appointment, with the advice and consent of the Senate,
3 and the appointee shall hold office during the unexpired term. Each
4 member shall hold office until a successor has been appointed and
5 qualified. Five members of the Commission shall constitute a
6 quorum, and the vote of the majority of members present shall be
7 necessary for any action to be taken by the Commission. No vacancy
8 in the membership of the Commission shall impair the rights of a
9 quorum to exercise and perform all the rights and duties of the
10 Commission.

11 ~~D.~~ E. With the exception of the ex officio, no member of the
12 Commission shall seek election to a federal, state, or county office
13 while serving on the Commission.

14 F. Each member of the Commission, before serving on the
15 Commission, shall take and subscribe to the constitutional and
16 statutory oaths of office and file the oaths with the Secretary of
17 State. Members of the Commission shall be reimbursed for travel
18 expenses to Commission meetings as provided in the State Travel
19 Reimbursement Act.

20 G. The Commission shall be organized by the Governor who shall
21 appoint from the Commission the chair, the vice chair, and the
22 secretary. The Commission shall adopt rules pursuant to the
23 provisions of the Administrative Procedures Act to execute the
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1 powers and duties of the Commission and the Oklahoma Tourism and
2 Recreation Department.

3 H. The Commission may meet monthly and shall meet at least
4 quarterly. The Commission may meet at such other times as it deems
5 necessary for effectively performing its duties and
6 responsibilities. Special meetings may be called by the chair or by
7 any three members of the Commission. The meetings of the Commission
8 shall be subject to the Oklahoma Open Meeting Act.

9 I. The Commission is hereby declared to be a governmental
10 agency and instrumentality of this state with authority to exercise,
11 in addition to those it now has, the rights, privileges, and
12 functions specified.

13 SECTION 2. AMENDATORY 74 O.S. 2021, Section 2204, is
14 amended to read as follows:

15 Section 2204. There are hereby granted to and imposed in the
16 Oklahoma Tourism and Recreation Commission, and in any commission or
17 body which may succeed to the powers, rights, and duties of the
18 Commission, ~~Oklahoma Tourism and Recreation Department~~ the following
19 additional powers, rights, and duties:

- 20 1. Sue and be sued;
21 2. Adopt, use, and alter an official seal;
22 3. Make bylaws for the management and regulation of its
23 affairs;
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1 4. Appoint, prescribe the duties, and fix the compensation for
2 officers, agents, and employees;

3 5. Make contracts and execute instruments as in the judgment of
4 the ~~Department~~ Commission are necessary or convenient to the
5 exercise of the powers conferred upon it by law; and

6 6. Promulgate rules and policies necessary and convenient to
7 the exercise of the powers conferred upon it by law.

8 SECTION 3. AMENDATORY 74 O.S. 2021, Section 2206, is
9 amended to read as follows:

10 Section 2206. The chief executive officer of the Oklahoma
11 Tourism and Recreation Department shall be the Executive Director,
12 who shall be appointed by the ~~Governor, with the advice and consent~~
13 ~~of the Senate,~~ Oklahoma Tourism and Recreation Commission, and who
14 shall serve at the pleasure of the ~~Governor~~ Commission and may be
15 removed or replaced without cause. The Executive Director shall be
16 chosen with regard to knowledge, training, experience, and ability
17 to administer the functions of the Department. ~~Compensation for The~~
18 Commission shall establish the salary of the Executive Director
19 ~~shall be determined pursuant to Section 3601.2 of this title.~~

20 SECTION 4. This act shall become effective November 1, 2026.
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1 Passed the Senate the 11th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives